Master Services Agreement

This is an agreement, effective , by and between Remagent Employment Professionals, Inc. DBA Remagent, and , now referred to as "CLIENT" with an office at:

1.) **Services and Obligations**

a. **Description of Services**

Under the terms of this Agreement, Remagent will provide Staffing and Recruiting services to Client, via access to a recruiting portal at www.Remagent.com.

Remagent will provide Client with access to www.Remagent.com for Client to search for and select candidates ("Remagent Professionals") for staffing opportunities or for hire.

b. **Remagent's Obligations Regarding Staffing**

When providing Staffing Services, Remagent agrees, with respect to any individual who it considers or assigns to perform services for Client, to:

i. Abide by all applicable federal, state, and local anti-discrimination statutes and regulations;
ii. Procure job applicants and present qualified candidates to Client without regard to race, religion, national origin, age, sex, age, disability, immigrant status or any other protected category;
iii. Comply with the verification requirements of the Immigration Reform and Control Act;
iv. Maintain all necessary personnel and payroll records as required by law and to make such records available to Client if necessary to ensure compliance with this Agreement;
v. Compute the Remagent Professional's wages and withhold applicable federal, state and local taxes, including Federal Insurance Contributions Act ("FICA") taxes;
vi. Remit employee withholdings to the proper governmental authorities and make employer contributions for FICA taxes and federal and state unemployment taxes;
vii. Pay net wages as required by applicable federal, state or local law;
viii. Provide for workers' compensation coverage in appropriate amounts;
ix. Remove an individual who it assigned to Client from assignment at the request of Client; and
x. Retain the right to make all decisions with respect to discipline and termination.

c. **Client's Obligations**

i. Client agrees to pay Remagent for its services according to the terms of this Agreement or any subsequent Statement of Work.

ii. If working in a Client office, Client agrees to provide Remagent Professionals with a suitable place of work that complies with applicable federal, state and local health and safety laws.

iii. If working remotely (Work From Home (WFH)), Client agrees to provide Remagent Professional with all necessary hardware to fully perform the services as outlined in an attached Work Order Statement of Work (Work Order SOW), unless Bring Your Own Device (BYOD) is agreed upon.

iv. If working remotely (Work From Home (WFH)), Client agrees to provide Remagent Professional with all necessary software to fully perform the services as outlined in an attached Work Order SOW.

v. Client agrees to designate a member of its staff who will be authorized to sign time sheets presented to it by a Remagent Client Administrator in order for Remagent to accurately monitor and record the Remagent Professional's compensable working time. Time sheets signed by Client will be conclusive as to the number of compensable hours worked by a Remagent Professional. Remagent Professional's will also submit time in Client's time system if requested. In the event of a discrepancy between the hours reported in Remagent's and Client's time system, the parties will reconcile and agree on the correct amount within three (3) days of identifying the discrepancy. Client will pay for all time worked and not ask or permit any Assigned Worker to perform services "off the clock."

vi. Client assumes responsibility for its compliance with applicable state and federal labor and employment laws that pertain to a Remagent Professional and while performing services for Client. This includes, but is not limited to, allowing ample time for rest and meal periods as required under state or local law, and maintaining a work environment that is not discriminatory or harassing based on any protected characteristics under federal, state or local law.

vii. Client accepts responsibility for the supervision, direction and control of the work performed by a Remagent Professional.

2.) **Fees and Expenses**

a. **Identifying Fees and Expenses**

This agreement shall apply to contractors and employees provided by Remagent, and any agreed upon changes in rate can be modified via an updated Work Order SOW.

i. Client will pay to Remagent a fee for services provided; such fee will be based upon a Work Order SOW for each Remagent Professional. This will include the rate of pay agreed upon with the Remagent Professional plus the agreed Remagent Recruitment fee.

ii. Where applicable, Client will pay any state or local sales tax in addition to the billing rate unless otherwise noted in the Work Order SOW.

iii. To the extent overtime pay is required under federal, state, or local law with respect to the work performed by the Remagent Professional, Client shall pay the agreed upon billing rate.

iv. Client will not request any non-exempt roles from Remagent and no overtime will be required.

v. Client acknowledges that by approving contractor's hours/timesheets, Client is agreeing to pay Remagent the agreed upon bill rate for the work completed during each of those hours up to forty (40) hours per week. Any changes in rates or fees must be agreed upon by both parties through a new executed Work Order SOW.

vi. Client will reimburse Remagent for reasonable pre-approved in writing out-of-pocket materials, services, out-of-town travel and lodging and/or other expenses incurred by Remagent or a Remagent Professional.

vii. Client has the right to terminate a contracted Remagent Professional at anytime or to request a contract extension after the contract’s end date.

viii. If the Client's invoices are in good standing, and no invoices are past due at the end of the contract term of the Remagent Professional, and the Remagent Professional has worked for Client for greater than six (6) months, Client has the option to directly hire the Remagent Professional for a finder’s fee of 25% of the current rate multiplied by the total hours worked over the last six months. Client acknowledges that Remagent Professional is ineligible for conversion if any invoices are past due. Prior to conversion, Client also must complete the "Notification of Conversion Letter," and return back to Remagent.

b. **Time for Preparing Invoices**

Remagent will not charge Client for the time of administrative, billing or other support personnel of Remagent.

c. **Payment of invoices**

Remagent will invoice Client on a weekly basis. Payments are due within fifteen (15) days of an undisputed invoice's receipt. If Remagent has communicated with Client, either verbal or written, and invoices are still past due by more than fifteen (15) days, a late fee will be assessed at 4% per week. Additionally, Remagent is able to remove current Remagent Professional(s) from Client without liability to Client.

3.) **Term and Termination**

The term of this Agreement shall commence when signed by both parties and shall continue for a three (3) year period, which will auto renew unless the parties terminate in writing. This Agreement can be terminated by either party, at any time, by providing the other party with thirty (30) days written notice. Client agrees to pay Remagent for all Remagent Professional’s hourly bill rates and Remagent fees for services provided up to the termination date. Unless

agreements are made before the terminations date, Remagent Professionals working under contract or who have worked under contract in the past twelve (12) months, are unable to be hired or contracted for a period of twelve (12) months.

4.) **Governing Law and Dispute Resolution**

The laws of the State of Texas shall govern this Agreement. Any and all disputes arising out of, or relating to, the performance of services contracted for under this Agreement shall be settled by arbitration in accordance with the Commercial Arbitration Rules of the American Arbitration Association, or any successor thereto then prevailing. Such arbitration shall be final and binding upon the parties and shall be the sole and exclusive remedy of the parties. The costs of such arbitration shall be born equally by the parties. In any dispute arising out of or related to this Agreement, the prevailing party shall be entitled to reasonable attorneys' fees and costs.

5.) Indemnity

a. CLIENT SHALL DEFEND, HOLD HARMLESS AND INDEMNIFY Remagent AGAINST ANY LEGAL LIABILITY (INCLUDING LEGAL DEFENSE ATTORNEYS' FEES AND COSTS) RESULTING FROM, ARISING OUT OF OR RELATED TO ANY VIOLATION OF THIS AGREEMENT OR ANY VIOLATION OF FEDERAL, STATE OR LOCAL LAW ARISING OUT OF ANY ACTIONS OF THE CLIENT OR ITS EMPLOYEES.

b. Remagent SHALL DEFEND, HOLD HARMLESS AND INDEMNIFY CLIENT AGAINST ANY LEGAL LIABILITY (INCLUDING LEGAL DEFENSE ATTORNEYS' FEES AND COSTS) RESULTING FROM, ARISING OUT OF OR RELATED TO ANY VIOLATION OF THIS AGREEMENT OR ANY VIOLATION OF FEDERAL, STATE OR LOCAL LAW ARISING OUT OF ANY ACTIONS OF Remagent OR ITS EMPLOYEES.

6.) **Independent Contractor**

In its performance of this Agreement, Remagent shall at all times act in its own capacity and right as an independent contractor with respect to Client, and nothing contained herein shall be construed to make Remagent an agent or partner of Client.

7.) **Non-Solicitation**

Remagent and Client agrees that during the Agreement and for a period of twelve (12) months after the completion of the Agreement, neither party will hire, solicit or aid in the solicitation of a Remagent Professional or employee of the other party, to leave his or her employment or contract with Remagent or Client to work for the other party directly or indirectly without the express written consent from the other party.

8.) **General**

a. **Entire Agreement and Modification**

This Agreement, together with any attachments and associated bill rate agreements, contains a complete statement of all the arrangements between the parties with respect to Remagent’s services for Client, and supersedes all prior agreements between Client and Remagent regarding the subject matter of this Agreement. This Agreement may only be modified in writing signed by both parties.

b. **Assignment; Subcontractors**
Neither Client nor Remagent may assign or subcontract this Agreement or any of its rights or obligations under the Agreement without prior written consent of the other party. In order to meet Client's staffing requests, Remagent may subcontract with third parties to provide Remagent Professionals and comply with the terms of this Agreement.

c. **Waiver**
No waiver of any breach of this Agreement will be considered valid unless in writing. The failure or delay of Client or Remagent in exercising any of its rights under this Agreement will not constitute a waiver of such rights except as specifically provided in this Agreement.

d. **Severability**
If any provision of this Agreement is declared or found to be illegal, unenforceable or void for any reason by a court of competent jurisdiction, then both parties shall be relieved of all obligations arising under such provision but only to the extent that such provision is illegal, unenforceable or void. The remainder of such provision and the remainder of this Agreement will not be affected by such declaration or finding and each provision not so affected will remain in full force and effect. It is the intention of the parties that the provisions of this Agreement will be carried out to the fullest extent permitted by law.

IN WITNESS WHEREOF, the parties have caused this Agreement to be executed as of the date signed by both parties.

Remagent Employment Services, LLC:

By: _____

Date: _____

Print Name: Keith Blanco

Title: Managing Director

CUSTOMER (CLIENT) NAME:

By:

Date:

Print Name:

Title: